

plaintiff's vehicle had defects that substantially impaired its use, value or safety. Plaintiffs are entitled to discovery that is probative of defendant's knowledge of defects in 2023 Ford Escape vehicles, "including in vehicles other than the subject vehicle, and defendant's handling of complaints." (*Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 143-44, 154-55, (superseded by revisions to the Federal Rules of Civil Procedure. See Fed. R. Civ. P. 26(b)) [evidence pertaining to defects in same model transmission in vehicles other than subject vehicle is relevant to Song-Beverly claim]; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973-74, 993 [evidence pertaining to similar problem in other vehicles other than subject vehicle are highly relevant].)

Nonetheless, on November 17, 2025, Defendant provided supplemental documents and responses to Plaintiff's Requests for Production. Upon review of Defendant's supplemental responses, the court finds the responses sufficient, and Defendant has provided code compliant responses. That said, there are still objections raising attorney-client privilege or the attorney work product protections, yet it appears that Defendant has failed to provide support for their assertions as required by the code (See California Code of Civil Procedure section 2031.240, subdivision (c)(1).)

Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents is otherwise denied.

**3. 9:00 AM CASE NUMBER: C24-03117
CASE NAME: JOSEPH GIOVINCO VS. FORD MOTOR COMPANY, A DELAWARE CORPORATION
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS
FILED BY: GIOVINCO, JOSEPH ANTHONY
*TENTATIVE RULING:***

Plaintiff's Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is otherwise denied.

On February 24, 2025, Plaintiff propounded on Defendant twenty-one form interrogatories related to their action brought pursuant to the Song-Beverly Act. Plaintiff seeks to compel further responses to Request Nos. 12.1, 15.1, and 17.1. Plaintiff asserts that Defendants have failed to provide appropriate responses to Form Interrogatories 12.1, 15.1, and 17.1, as required under the Code. The court finds that Plaintiff provided a separate statement compliant with the code.

Form Interrogatory No. 12.1 seeks witnesses to the Subject Vehicle's defects; Form Interrogatory No. 15.1 seeks information and facts supporting Defendant's affirmative defenses; and Form Interrogatory No. 17.1 seeks information regarding Defendant's responses to Plaintiff's requests for admissions.

A Song-Beverly Action focuses on whether plaintiff's vehicle had defects that substantially impaired its use, value or safety, and as such, the court finds all of Plaintiff's requests relevant.

Pursuant to California Code of Civil Procedure section 2030.210: (a) The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

- (1) An answer containing the information sought to be discovered.
- (2) An exercise of the party's option to produce writings.
- (3) An objection to the particular interrogatory.

Form Interrogatory No. 12.1:

This request seeks specific information related to witnesses to the “incident.” The court does not disagree with Defendant’s initial objection that the term “incident” in essence is vague and ambiguous in the context of a Song-Beverly Act case. However, counsel for Defendant is well-experienced in these types of cases and seeing that Form Interrogatories are approved by Judicial Council and routinely used in civil discovery, the term “incident” should have meant more to Defendant’s counsel than to litigants not typically involved in these types of action and therefore their objection is without merit. Nonetheless Defendant provided an adequate response to Plaintiff’s request by producing documents.

Form Interrogatories No. 15.1 and 17.1:

Upon review of Defendant’s responses provided for Request Nos. 15.1 (affirmative defenses) and 17.1 (unqualified admissions), the court finds the responses sufficient. Despite providing objections, Defendant also provided responses by producing documents, which they are permitted to do under the code, and in part providing affirmative substantive responses. While Plaintiff may not be satisfied with Defendant’s answers, the responses do not appear to be evasive or a misuse of the discovery process requiring this court’s intervention. However, Defendant is to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026.

Accordingly, Plaintiff’s Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff’s Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is otherwise denied.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C24-00266
CASE NAME: SHALINA BOYD, AN INDIVIDUAL VS. BELLA NAIL & SPA
SETTLEMENT CONFERENCE WITH JUDGE MELISSA O'CONNELL IN DEPT 20
FILED BY:
TENTATIVE RULING:

The Parties jointly requested a continuance of the matter to a later date.